

I-2025-009574

Book 3028 Pg 242

09/10/2025 8:43am

Pg 0242-0248

Fee: \$30.00 Doc: \$0.00

Rebekah Couch - McClain County Clerk
State of OK



✓ By SP, Deputy
Return to:

McAfee & Taft
8th Floor, 2 Leadership Square
211 N Robinson Ave
OKC, OK 73102

SECOND AMENDMENT TO CONSOLIDATED OIL & GAS MORTGAGE

McClain County, Oklahoma

This Second Amendment to Consolidated Oil and Gas Mortgage is made effective the 20th day of July, 2025, between **COSMO ENERGY, LLC**, an Oklahoma limited liability company ("Cosmo"), **TRINITY MINERALS, LLC**, an Oklahoma limited liability company, and **COSMO NO-OP, LLC**, an Oklahoma limited liability company (herein collectively the "Mortgagor") and **SOVEREIGN BANK**, whose address is 3030 Northwest Expressway, Suite 130, Oklahoma City, OK 73112 (herein "Bank" or the "Mortgagee").

W I T N E S S E T H:

WHEREAS, Mortgagor has previously executed and delivered that certain Consolidation and Amendment to Oil and Gas Mortgage in favor of Mortgagee which was filed in the records of the County Clerk of McClain County, State of Oklahoma, on May 18, 2022, in Book 2783 at Page 467, and that certain First Amendment to Consolidated Oil and Gas Mortgage which was filed in the records of the County Clerk of McClain County, State of Oklahoma, on June 26, 2023, in Book 2866 at Page 221, covering the oil and gas interests described on Exhibit "A" attached hereto and made a part hereof ("Mortgage"), and

WHEREAS, this Second Amendment to Consolidated Oil and Gas Mortgage is further intended to provide that the Indebtedness described below shall be secured by the oil and gas interests (Mortgaged Premises) described on Exhibit A attached hereto. The terms of the prior Mortgage are incorporated herein by reference, as if fully set forth herein and the oil and gas interests identified on Exhibit A, attached hereto, shall all be subject to the terms and conditions of said Oil and Gas Mortgage, as amended herein and otherwise, as if said interest were originally identified in said Mortgage, and

WHEREAS, Bank and Mortgagor have modified certain terms of the loan secured by the Mortgage and wish to reflect the modified terms by this agreement as to an amendment and modification to the Mortgage.

IT IS THEREFORE AGREED:

1. The Mortgage is hereby amended to provide that until the following Indebtedness has been paid in full, the same shall secure the following described Indebtedness, to-wit:

Ninth Amended and Restated Promissory Note from Mortgagor, to Bank dated of even date herewith, and all renewals thereof in the principal amount not to exceed \$4,000,000.00, with interest and payments according to the terms stated therein, with a Maturity Date of July 25, 2027.

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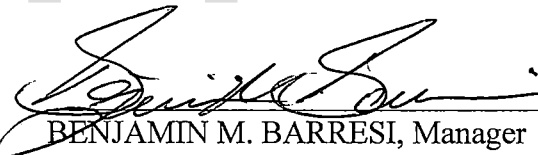
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2. This Mortgage covers only the oil and gas interests described on Exhibit A hereto.

3. The Mortgagor hereby assumes and affirms all terms and conditions of the Existing Mortgages as amended herein. The rights of the Mortgagee arising under the clauses and covenants contained in this indenture shall be separate, distinct and cumulative and none of them shall be in exclusion of the others, and no act of the Mortgagee shall be construed as an election to proceed under any one provision herein to the exclusion of any other provisions, anything herein or otherwise to the contrary notwithstanding.

IN WITNESS WHEREOF, this Second Amendment to Consolidated Oil and Gas Mortgage is executed the day and year first above written.

COSMO ENERGY, LLC, an Oklahoma
limited liability company

By: 
BENJAMIN M. BARRESI, Manager

TRINITY MINERALS, LLC, an Oklahoma
limited liability company

By: 
BENJAMIN M. BARRESI, Manager

COSMO NO-OP, LLC, an Oklahoma
limited liability company

By: 
BENJAMIN M. BARRESI, Manager

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ACKNOWLEDGMENTS

STATE OF OKLAHOMA)
) ss:
COUNTY OF OKLAHOMA)

Before me, a notary public in and for said county and state, on this 27 day of August 2025, personally appeared BENJAMIN M. BARRESI, to me known to be the identical person who subscribed the name of the maker hereof to the foregoing instrument as its Manager, and acknowledged to me that he executed the same as his free and voluntary act and deed and as the free and voluntary act and deed of such company, for the uses and purposes set forth therein.

(SEAL)


NOTARY PUBLIC

My Commission Expires:



STATE OF OKLAHOMA)
) ss:
COUNTY OF OKLAHOMA)

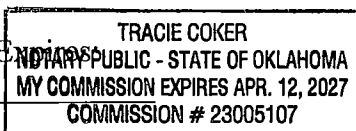
Before me, a notary public in and for said county and state, on this 27 day of August 2025, personally appeared BENJAMIN M. BARRESI, to me known to be the identical person who subscribed the name of the maker hereof to the foregoing instrument as its Manager, and acknowledged to me that he executed the same as his free and voluntary act and deed and as the free and voluntary act and deed of such company, for the uses and purposes set forth therein.

(SEAL)


NOTARY PUBLIC

My Commission Expires:

Commission No.:



VIEW ADDITIONAL LAND RECORDS AT
OKCOUNTYRECORDS.COM

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STATE OF OKLAHOMA)
) ss:
COUNTY OF OKLAHOMA)

Before me, a notary public in and for said county and state, on this 27 day of August 2025, personally appeared BENJAMIN M. BARRESI, to me known to be the identical person who subscribed the name of the maker hereof to the foregoing instrument as its Manager, and acknowledged to me that he executed the same as his free and voluntary act and deed and as the free and voluntary act and deed of such company, for the uses and purposes set forth therein.

(SEAL)



NOTARY PUBLIC

My Commission Expires **TRAVIS COKER**
NOTARY PUBLIC - STATE OF OKLAHOMA
MY COMMISSION EXPIRES APR. 12, 2027
Commission No. **23005107**

VIEW ADDITIONAL LAND RECORDS AT
OKCOUNTYRECORDS.COM

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EXHIBIT "A"

MCCLAIN County, OK

WELL NAME	API	WELL NUMBER	STR	LOCATION	LEGAL DESCRIPTION
WHESTONE	08722338	0604 25-36-1-3WXH	1-05N-04W	Bottom	SE4 SW4 SW4 SW4
SHARP 5N 1W 10	08722069	1HX	15-05N-01W	Bottom	SE4 SW4 SE4 SW4
ALVIS	08722033	1H-8X	17-06N-04W	Surface	NW4 SW4 SE4 SE4
RISING SUN	08722458	0703 8-17-4WXH	17-07N-03W	Bottom	SW4 SW4 NE4 SE4
RITTER	08722393	0604 7-18-2WXH	18-06N-04W	Bottom	NE4 NW4 SW4 SW4
RITTER	08722398	0604 7-18-3WXH	18-06N-04W	Bottom	NW4 NE4 NW4 NE4
GARLEN 0804	08722306	3HM-7X	18-08N-04W	Surface	SE4 SW4 SE4 SE4
GARLEN 0804	08722078	2HM-7X	18-08N-04W	-	SW4 SW4 SE4 SW4
GARLEN 0804	08722078	2HM-7X	18-08N-04W	Surface	SW4 SW4 SE4 SW4
LIGHTHORSE 18-19-0603	08722167	1WXH	19-06N-03W	Bottom	SE4 SW4 SW4 SW4
MOOSE FED	08722380	0604 20-29-2WXH	20-06N-04W	Surface	NW4 NW4 NE4 NW4
MOOSE	08722375	0604 29-20 5WXH	20-06N-04W	Bottom	SW4 NW4 NE4 NE4
MOOSE	08722382	0604 20-4WH	20-06N-04W	-	NW4 NW4 NE4 NW4
MOOSE	08722382	0604 20-4WH	20-06N-04W	Bottom	SE4 SE4 SE4 SW4

MOOSE	08722382	0604 20-4WH	20-06N-04W	Surface	NW4 NW4 NE4 NW4
RISING SUN	08722457	0703 8-17-3WXH	20-07N-03W	Bottom	NE4 NE4 NE4 NW4
GOSHORN	08722041	1H-24XX	24-07N-04W	Bottom	SW4 NE4 NE4 SE4
WHETSTONE	08722338	0604 25-36-1-3WXH	25-06N-04W	Surface	NW4 NE4 NE4 NW4
BRUEHL MUI7-22 27-34	08722353	3HX	27-07N-02W	Surface	NW4 NW4 NE4 NE4
BRUEHL MUI7-22 27-34	08722354	4HX	27-07N-02W	Surface	NW4 NW4 NE4 NE4
MOOSE FED	08722380	0604 20-29-2WXH	29-06N-04W	Bottom	SE4 SE4 SW4 SW4
MOOSE	08722375	0604 29-20 5WXH	29-06N-04W	Surface	SE4 NW4 SW4 SE4
SACRED SUN	08722426	0703 29-32-5-2WXH	29-07N-03W	Surface	SE4 NE4 NE4 SW4
SHARP 5N 1W 10	08722069	1HX	3-05N-01W	Surface	NE4 SW4 SE4 SW4
GILBERT	08721477	1-3	3-05N-04W	Surface	SE4 SE4 NE4
DOGFISH 0604	08722384	31-30 3WXH	30-06N-04W	Bottom	NE4 NW4 NE4 NE4
DOG-STELLA	08722335	0604 30-19-2WXH	30-06N-04W		NE4 NE4 SE4 NW4
DOG-STELLA	08722335	0604 30-19-2WXH	30-06N-04W	Surface	NE4 NE4 SE4 NW4
DOG-STELLA	08722336	0604 30-19-18 3WXH	30-06N-04W	Surface	NE4 NE4 SE4 NW4
ALLEN	08722043	1H-29X	30-07N-04W	Surface	SW4 NE4 NE4 NE4
AUTREY 5N 1W 5	8722183	1HX	32-06N-01W	Bottom	SE4 NW4 NW4 NW4
ALLEN	08722043	1H-29X	32-07N-04W	Bottom	SE4 SW4 SW4 SW4

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BRUEHL MU17-22 27-34	08722353	3HX	34-07N-02W	Bottom	SW4 SE4 SW4 SE4
BRUEHL MU17-22 27-34	08722354	4HX	34-07N-02W	Bottom	SW4 SE4 SE4 SE4
GOSHORN	08722041	1H-24XX	36-07N-04W	Surface	NW4 SW4 SE4 SE4
SACRED SUN	08722426	0703 29-32-5-2WXXH	5-06N-03W	Bottom	SE4 SE4 SE4 NW4
RISING SUN	08722458	0703 8-17-4WXXH	5-07N-03W	Surface	NW4 SW4 SW4 SE4
RISING SUN	08722457	0703 8-17-3WXXH	5-07N-03W	Surface	NW4 SW4 SW4 SE4
DOGFISH 0604	08722384	31-30 3WXXH	6-05N-04W	Surface	NE4 NW4 NE4 NE4
DOGFISH FED	08722383	0604 31-30 2WXXH	6-05N-04W	Surface	NE4 NW4 NE4 NE4
RITTER	08722393	0604 7-18-2WXXH	6-06N-04W	Surface	SW4 SW4 SE4 SW4
RITTER	08722398	0604 7-18-3WXXH	6-06N-04W	Surface	SW4 SW4 SE4 SW4
AUTREY 5N 1W 5	8722183	1HX	7-05N-01W	Surface	NE4 NE4 NE4 NE4
LIGHTHORSE 18-19-0603	08722167	1WXXH	7-06N-03W	Surface	SW4 SW4 SW4 SW4
ALVIS	08722033	1H-8X	8-06N-04W	Bottom	NE4 NE4 NW4 NE4

END OF EXHIBIT "A"

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